

TENTATIVE RULING

Kogan Counsel APC v. Joey M. Miller (26CV002024)

Plaintiff's Moton for Order Authorizing Release of Criminal Justice Information

By this motion, Plaintiff Kogan Counsel APC requests that the court find, per the standard laid out in Montana Code Annotated section 44-5-303(1) (the "Montana Confidentiality Rule"), that the demands of individual privacy do not clearly exceed the merits of disclosure of an otherwise confidential Missoula County Sheriff's Office report in Missoula County Sheriff's Office Case No. 2026-8226. Defendant Joey Miller opposes the motion on multiple bases.

The Motion is **DENIED**.

Plaintiff seeks production of Montana confidential criminal justice information in connection with a report that Defendant states she made to the Missoula County Sheriff regarding allegedly threatening statements that Plaintiff made to Defendant. Plaintiff states in the motion that the information is needed to determine the date the report was made, in order to show that it was made significantly after the statements at issue and after Plaintiff filed this lawsuit seeking to enforce an agreement to pay for legal services. Plaintiff sought the report information from the Missoula County Sheriff but was told he would need a court order allowing for disclosure under the Montana Confidentiality Rule. Plaintiff does not seek an order instructing the Montana authorities to take any action but instead seeks findings under the Montana Confidentiality Rule that may allow the Missoula County Sheriff to permit disclosure.

The Montana Confidentiality Rule states in pertinent part, that unless otherwise provided, "dissemination of confidential criminal justice information is restricted to criminal justice agencies, to those authorized by law to receive it, and to those authorized to receive it by a district court upon a written finding that the demands of individual privacy do not clearly exceed the merits of public disclosure." Plaintiff submits that its principal, Gavin Kogan, who is the subject of the report, waived all privacy concerns under penalty of perjury, and that Defendant, who made the report, waived all privacy concerns by describing the report in filings in this case.

The court is not convinced that the merits of disclosure outweigh the demands of individual privacy. First, as to the merits of disclosure, in her opposition to this motion, Defendant expressly concedes that she made the report on April 27, 2026, more than four months after the complained of statements were allegedly made, and after this lawsuit was filed. This is the information Plaintiff brought the motion to obtain, and Plaintiff now has it, eliminating the need for production of Montana confidential criminal justice information. To the extent Plaintiff states in the reply that production of the report would also test Defendant's description of the content of the report, it is not clear that this information would be relevant to any issue in dispute in this case. Moreover, under the Montana laws cited by the parties, public information available to Plaintiff includes, the "Initial Offense Report" defined as "the first record of a criminal justice agency that indicates that a criminal offense may have been committed and includes the initial facts associated with that defense." (Montana Admin. R. 23.12.201(3).) Plaintiff remains free to seek this information from the relevant Montana agencies.

Separately, with respect to privacy interests, the scope of what the Missoula Sheriff's Office is withholding is not clear to the court, and it is possible that other privacy interests are involved, including those of third parties, or those of the investigating agencies.

For these reasons, the motion is denied.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.